

# **TENTATIVE RULING FOR August 7, 2026**

## **Department S22 – Judge David Driscoll**

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

**If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.**

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

---

**CIVSB2502315**

ELIANA NUNEZ, et al. v. FCA US, LLC, et al.

---

### **TENTATIVE RULING**

Plaintiffs Eliana and Steven Nunez contend they entered into a warranty contract in August 2018 with Defendant FCA US, LLC (FCA), regarding their 2018 Dodge Durango. The vehicle was purchased at Defendant Jeep Chrysler Dodge Ram Fiat of Ontario, which was FCA's authorized retail dealership. The vehicle purportedly developed defects, consisting of engine misfires, a coolant leak, engine mount failures, a malfunctioning oxygen sensor, hesitation on acceleration, among other things. The vehicle was not repaired after several attempts and FCA also purportedly failed to provide a replacement or restitution. As a result, Plaintiffs commenced suit against FCA in January 2025 and the operative first amended complaint (FAC) followed. (FAC at ¶¶ 7-17 and 38.)

The FAC contains claims for (1) violation of subdivision (d) of Civil Code section 1793.2 (of the Song Beverly Act), (2) violation of subdivision (b) of section 1793.2 (which requires repairs to be commenced within a reasonable time and which requires the goods to be serviced or repaired so as to conform to the warranties within 30 days), (3) violation of subdivision (a)(3) of Civil Code section 1793.2 [which requires the manufacturer to ensure that authorized service and repair facilities have sufficient literature and replacement parts to effect repairs during the warranty], (4) breach of the implied warranty of merchantability under Civil Code section 1794, (5) negligent repairs (against the dealer-defendant), and (6) fraudulent inducement.

FCA moves for judgment on the pleadings as to the four causes of action against it under the Song-Beverly Act in addition to the sixth cause of action for fraud, on the grounds that the claims are time barred and because the fraud claim is insufficiently stated as failing to allege FCA had exclusive knowledge of the defect, failing to allege there was a duty disclose or a transactional relationship, and because the claim is barred by the economic loss rule. The motion is supported by a declaration from attorney Felicia Borrero and meet and confer correspondence.

The motion is opposed by Plaintiffs on the grounds that the limitations period under Code of Civil Procedure section 871.21 does not apply and does not exclude other equitable tolling doctrines; the statute of limitation for the warranty claims accrues when the breach is or should have been discovered; and the fraud claim is sufficiently alleged and is not barred by the economic loss rule.

### **Motions for Judgment on the Pleadings**

A motion for judgment on the pleadings has the same function as a general demurrer, but is made after the time to file a demurrer has expired. For instance, a demurrer can be predicated on a complaint's failure to state facts sufficient to constitute a cause of action (Code of Civ. Proc. §430.10, subd. (e)), but it should be sustained only when the facts alleged on the face of the complaint fail to state any valid claim entitled to the plaintiff or disclose a complete defense to relief. Even if a plaintiff is mistaken as to the nature of the case or the legal theory on which he/she could prevail, the complaint is good against a general demurrer if the essential facts allege some valid cause of action. (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 572.)

The grounds for a motion for judgment on the pleadings must similarly appear on the face of the challenged pleading or be based on facts which the court may judicially notice, in which case the judicially noticed content must be specified in the opening papers. (Code Civ. Proc., § 438, subd. (d); compare *Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5 [on "nonstatutory" motion for judgment on the pleadings, court took judicial notice of matters in parties' exhibits].) Except as provided by Code of Civil Procedure section 438, the rules governing demurrers generally apply to motions for judgment on the pleadings. (*Cloud v. Northrop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.)

If the motion for judgment on the pleadings is granted, it may be granted with or without leave to amend. (Code Civ. Proc., § 438, subd. (h)(1).) The same standards apply in granting leave to amend as for demurrers and leave is routinely granted. (*People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692; Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-C.)

### **Code of Civil Procedure section 871.21**

Code of Civil Procedure section 871.21 provides that "[a]n action covered by Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty," but such an action covered by Section 871.20 "shall not be brought later than six years after the date of original delivery of the motor vehicle." Section 871.20 addresses actions against a manufacturer that has opted in to the procedures under section 871.29 (which the request for judicial notice in this case establishes) in which restitution or a replacement is sought under subdivisions (b) or (d) of section 1793.2, section 1793.22, or section 1794 of the Civil Code, or for penalties under subdivision (c) of section 1794 when the request is based on noncompliance with an applicable express warranty.

However, both time periods shall be tolled as "provided by tolling requirements prescribed in subdivision (c) of Section 1793.22 of the Civil Code, as applicable," for "the time the motor vehicle is out of service by reason of repair for any nonconformity," and for "the time period after a pre-suit notice is provided to

the manufacturer in accordance with Section 871.24, which time period shall not exceed 60 days.” (Code Civ. Proc., § 871.21.)

In this case, the first and second causes of action are based upon violations of subdivisions (b) and (d) of section 1793.2, which are claims falling within the limitations period outlined above. The third cause of action is based upon subdivision (a)(3) of section 871.21, which is not one of the subdivisions expressly addressed by section 871.20. Nevertheless, section 871.20 states it applies to actions for restitution or replacement under section 194 or penalties under that statute, which are requested in this case in connection with the third cause of action. (See FAC at ¶¶ 61-62.)

FCA contends the limitations period ran on August 27, 2024, which was calculated using the five year warranty period evidenced in the exhibit to the FAC, plus one year after the expiration of the warranty as contemplated in section 871.21. Even using the six-year period and the August 27, 2018 date alleged in the FAC, the limitations period would expire on the same day calculated by FCA. Suit was brought about five months later, or on January 22, 2025.

However, the District Court in *Galdamez v. FCA US LLC* (C.D. Cal., Mar. 23, 2026, No. 2:25-CV-10618-HDV-MAR) 2026 WL 1047004, at \*1, held that “Section 871.21 does not apply retroactively and therefore cannot be invoked to dismiss Plaintiff’s Song-Beverly claims.” In that case, the vehicle was purchased in June 2018, which is close to the time Plaintiffs allegedly purchased their vehicle in this case. Suit was then filed on April 23, 2025, which is fairly close to the early 2025 date that suit was filed in this case. The *Galdamez* court denied a motion for judgment on the pleadings on statute of limitations grounds, reasoning that, and as the California Supreme Court has explained, statutory enactments generally only apply prospectively. The same reasoning would apply in this case and this Court will not apply section 871.20.

### **The Remaining Statute of Limitations Arguments as to the Song Beverly Claims**

FCA also attempts to apply a four-year limitations period as to the first four causes of action, based upon Commercial Code section 2725. Thus, per FCA, the first four claims needed to be filed by August 27, 2022 or within four years of the purchase.

Prior to section 871.20, the Song Beverly Act did not have its own statute of limitations. “California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs the statute of limitations for warranties arising under the California Uniform Commercial Code: section 2725.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306 [citations omitted].) Under that statute, “(1) An action for breach of any contract for sale must be commenced within four years after the cause of action has accrued. ... [¶] (2) A cause of action accrues when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach. A breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered.” (Com. Code, § 2725, subd.’s (1)-(2).)

“A promise to repair defects that occur during a future period is the very definition of express warranty of future performance, not only under the Act (Civ. Code, § 1791.2), but also in the California Uniform Commercial Code section 2313.” (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 217.) The Act also has additional underlying policies that effect the statute of limitations and the delayed discovery rule. In particular, the Act requires “buyers to give the seller of a ‘lemon’ automobile a reasonable opportunity to repair it.” (*Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205,

218-219 [citing Civ. Code, § 1793.2, subd.'s (d)(1) and (e)(1)].) The statutes also afford vehicle owners with a safe harbor since it presumes that four or more attempts constitutes a “reasonable opportunity.”

This concept was highlighted by the court of appeal in *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308, which indicated in the context of an implied warranty, “the duration provision is not a statute of limitations” and “[t]o say that a warranty exists is to say that a cause of action can arise for its breach. Defining the time period during which the implied warranty exists, therefore, also defines the time period during which the warranty can be breached.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309.)

The rule of law related to the express warranty claims is relevant in this case since Civil Code section 1791.1, subdivision (c), outlines the duration of implied warranties for new goods and section 1795.5, subdivision (c), outlines the duration of implied warranties for used goods. More specifically, both statutes are similar in that they indicate “[t]he duration of the implied warranty of merchantability and where present the implied warranty of fitness shall be coextensive in duration with an express warranty which accompanies the consumer goods, provided the duration of the express warranty is reasonable; but in no event shall such implied warranty have a duration of less than 60 days [for new goods] nor more than one year following the sale of new consumer goods to a retail buyer. Where no duration for an express warranty is stated with respect to consumer goods, or parts thereof, the duration of the implied warranty shall be the maximum period prescribed above.” For used goods, the warranty period is not less than “30 days nor more than three months following the sale of used consumer goods to a retail buyer.”

“[B]y giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery .... As discussed above, this is a change from the California Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309.) In *Cardinal Health 301, Inc. v. Tyco Electronics Corp.* (2008) 169 Cal.App.4th 116, 134, the court held that because “an implied warranty is one that arises by operation of law rather than by an express agreement of the parties, courts have consistently held it is not a warranty that ‘explicitly extends to future performance of the goods ... .’” However, *Cardinal* was **not** a Song-Beverly case, unlike *Mexia*, and the court in *Mexia* indicated its approach was “a change from the California Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” Given the ruling in *Mexia*, and since it applies to lemon law cases, this Court is bound by the holding.

In this case, the FCA broadly indicates the four-year limitation period applies to the Song Beverly claims and FCA calculates the deadline from August 27, 2022, but it does so in misapplying *Cardinal Health 301*, as opposed to properly applying *Mexia, supra*. Having applied the wrong law, FCA fails to provide the proper analysis showing that the claims are time barred.

At some point after delivery, Plaintiffs should have suspected the defect and at that point the limitations period could have commenced. (see *Vanella v. Ford Motor Company* (N.D.Cal. 2020) 2020 WL 887875, at p. \*4 [noting even if assured a vehicle is fixed, if it continues to have problems, the owner could have discovered the defect]; *Galvez v. Ford Motor Company* (E.D. Cal. 2018) 2018 WL 4700001, at p. \*5; *Durkee v. Ford Motor Company* (N.D. Cal. 2014) 2014 WL 7336672, at p. \*7 [noting a first or second repair would put a reasonable person on inquiry notice of a breach of warranty].) The FAC does not indicate when the repair attempts occurred, so the commencement of the limitations period is unclear.

It should also be noted that the FAC does not indicate when the vehicle was delivered and, at most, the FAC indicates the warranty contract was entered into “on or about” August 27, 2018. (FAC at ¶ 7.) It is

also plausible the warranty contract was entered into in contemplation for the vehicle that had not yet been delivered. In any event, The Rutter Group explains, “[a]llegations that an event occurred ‘on or about’ the crucial date for statute of limitations purposes overcome a general demurrer. It is enough that the claim may be timely. (If it is not, defendant can move for summary judgment.)” (The Rutter Group, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 7(I)-A at § 7:53.1 [citing *Childs v. State of Calif.* (1983) 144 Cal.App.3d 155, 160; see *Esparza v. Kaweah Delta Dist. Hosp.* (2016) 3 Cal.App.5th 547, 556 [allegation that claim timely presented “on or at” specified date not ambiguous or inconsistent with general allegation of compliance with claims presentation statute].)

“*In Boscus v. Waldmann* (1916) 31 Cal.App. 245, the court explained that “the phrase ‘on or about’ should be held to mean either the day mentioned or a day in very near proximity thereto ... And in *Cohn v. Wright* (1891) 89 Cal. 86, 88, 26 P. 643, our high court stated, “ ‘On or about’ is a relative term. It is sufficiently definite in certain connections, but in cases of this kind, where the right of a person depends on his doing a particular thing within a definite number of days after a certain event, it is necessary for him to allege and prove that the acts were performed within the time required by law.” Our survey of the cases addressing the issue persuades us that use of the term “on or about” when pleading dates constitutes a proper pleading only where the date specifically alleged is well within the applicable time constraint and where the actual date on which the subject event occurred is within close proximity to the alleged date.” (*Childs v. State of California* (1983) 144 Cal.App.3d 155, 160,)

However, courts have permitted allegations to be construed broadly enough to cover close to a year period. For instance, “in *Liptak v. Diane Apartments, Inc.* (1980) 109 Cal.App.3d 762, a complaint against contractors alleging negligent grading and filling of a slope “in 1968–1969,” was filed in November of 1978. “A judgment granting defendants demurrer and dismissing the complaint on the ground that it was barred by the applicable 10-year period of limitations (Code Civ.Proc., § 337.15) was reversed. Acknowledging the rule that the plaintiff could not amend his pleading to contradict the additional allegation of completion of grading of the slope “[i]n or about 1968,” the court was unable to “say that the causes of action are barred on their faces by the provisions of section 337.15.” (*Id.*, at p. 775.) The court explained: “The broad allegation of time may be the product of imaginative pleading, however, it creates a factual situation in respect to whether or not the action is barred by section 337.15 that must be resolved by the court or jury.” (*Childs v. State of California* (1983) 144 Cal.App.3d 155, 161 [further noting the liberal pleading standard especially applies where the relevant facts are presumptively within the defendant’s knowledge].)

Here, in light of the uncertainty regarding the dates Plaintiffs began experiencing the problems and the “on or about” allegations regarding the date of the warranty contract, and given the absence of allegations indicating the date of delivery and FCA’s failure to apply the appropriate law (indeed not even the one year limitations period for implied warranty claims), the court intends to deny the motion grounded on expiration of the statute of limitations.

### **The Fraud Cause of Action**

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.” (*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

Fraud claims must be alleged with particularity. In the affirmative representation context, that requirement “necessitates pleading facts which ‘show how, when, where, to whom, and by what means the representations were tendered.’ ” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 43.) The pleading standard is not weakened in concealment claims, however, as the “California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim.” (*Ibid.*)

For instance, “the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties’ contract. If the duty allegedly arose by virtue of the parties’ relationship and defendant’s exclusive knowledge or access to certain facts ... the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant’s awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant’s omission. ‘[M]ere conclusionary allegations that the omissions were intentional and for the purpose of defrauding and deceiving plaintiff[ ] ... are insufficient for the foregoing purposes.’ ” (*Rattagan, supra*, 17 Cal.5th at pp. 43–44.)

A duty to disclose arises in four situations: (1) the defendant is under statutory or other prescriptive legal obligation, (2) the defendant voluntarily assumed the duty due to a contractual undertaking, (3) a relationship exists between the defendant and the plaintiff, and (4) the defendant engaged in other conduct making it wrongful to remain silent. (*SCC Acquisitions, Inc. v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 864.) The relationship necessary to impose a duty to disclose is described as *transactional*:

In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff. (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311 [citing *Warner Construction Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294].)

*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844, (review dismissed) holds: “At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs’ allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan’s *authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers*. In light of these allegations, we decline to hold plaintiffs’ claim as barred on the ground there was no relationship requiring Nissan to disclose known defects.” (*Id.*, 844, emphasis added).

The operative FAC herein is devoid of any allegations regarding a relationship, agency or otherwise, between FCA and the dealership at the time of the sale of the subject vehicle. There are no factual allegations that the authorized dealership is acting as FCA’s agent at the point of sale, or that the dealership otherwise had the authority to make representations on behalf of FCA regarding the quality of the vehicle. There are no allegations of FCA’s control over the authorized dealership pertaining to information disseminated to the plaintiff at the time of purchase. Without such allegations, and in keeping with *Dhital*, the court finds that the FAC insufficiently pleads the existence of a transactional relationship between the plaintiffs and FCA at the time of sale that would give rise to a duty to disclose

by defendant, FCA. Consequently, the court intends to grant the motion as to the Sixth Cause of action for Fraudulent Inducement/Concealment with 20-days leave to amend.

### FCA's motion and the sufficiency of the claim

In this case, FCA contends that the FAC fails to allege that it had exclusive knowledge of the defect. But that allegation does exist. (FAC at ¶ 31.) Plaintiffs further allege that FCA acquired its knowledge based on monitoring of routine complaints about the vehicle, aggregate pre-market data, and other post-market data from FCA dealerships. (FAC at ¶ 32.) The claim that FCA knew about the defect is a sufficient ultimate fact, which is all that is generally needed at the pleading stage and to the extent fraud claims normally require more particularity, that standard is generally relaxed when the defendant may be assumed to possess knowledge of the facts at least equal, if not superior, to that possessed by the plaintiff. (*Dino, Inc. v. Boreta Enterprises, Inc.* (1964) 226 Cal.App.2d 336, 340.) How FCA acquired its notice of the defect would presumptively be within its own knowledge, so the allegations are sufficient.

As for FCA's reliance upon the economic loss rule, it provides that tort recovery for noninsurance contract breaches are precluded unless the alleged violation arises from an independent duty founded on principles of tort law. (*Aas v. Superior Court (William Lyon Company)* (2000) 24 Cal.4th 627, 636, 643; *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* (1994) 7 Cal.4th 503, 515.) However, the economic loss rule also generally does not lie when the contract was fraudulently induced, including based upon fraudulent concealment. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41.) Thus, absent a showing that an independent claim for fraud has not been established, the economic loss rule does not bar the claim.

However, as discussed above, the FAC does not plead facts with sufficient specificity establishing a transactional relationship between FCA and the Plaintiffs giving rise to a duty to disclose and for this reason, the court will grant the motion as to the Sixth Cause of Action.

### The statute of limitations defense

Under Code of Civil Procedure section 338, subdivision (d), the statute of limitations on "[a]n action for relief on the ground of fraud or mistake" is three years, but "[t]he cause of action in that case is not deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake." The statute "effectively codifies the delayed discovery rule in connection with actions for fraud, providing that a cause of action for fraud 'is not to be deemed to have accrued until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.'" (*Brandon G. v. Gray* (2003) 111 Cal.App.4th 29, 35.)

A plaintiff whose complaint shows on its face that their claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery; and (2) the inability to have made earlier discovery despite reasonable diligence. The burden is on the plaintiff to show diligence, and conclusory allegations will not withstand demurrer. (*CAMSI IV v. Hunter Technology Corp.* (1991) 230 Cal.App.3d 1525, 1536-1537.)

The limitations period begins when the plaintiff "suspects or should suspect that [the] injury was caused by wrongdoing, that someone has done something wrong...." (*Jolly v. Eli Lilly & Co.* (1988) 44 Cal.3d 1103, 1110.) The limitations period begins once the plaintiff "has notice or information of circumstances to put a reasonable person *on inquiry*" and "[a] plaintiff need not be aware of the specific 'facts' necessary to establish the claim." (*Id.* at pp. 1110-1111.) "Once the plaintiff has a suspicion of wrongdoing, and therefore an incentive to sue, [plaintiff] must decide whether to file suit or sit on [plaintiff's] rights. So long as a suspicion exists, it is clear that the plaintiff must go find the fact;

[plaintiff] cannot wait for the facts to find [plaintiff].” (*Id.* at p. 1111.) “The plaintiff is charged with this awareness as of the date he or she suspects or should suspect that the injury was caused by someone’s wrongful act.” (*Brandon G. v. Gray, supra*, 111 Cal.App.4th at p. 35.)

Assurances that the vehicle has been fixed can have some effect on the limitations period. (See *Vanella v. Ford Motor Company* (N.D.Cal. 2020) 2020 WL 887875, at p. \*4 [noting even if assured a vehicle is fixed, if it continues to have problems, the owner could have discovered the defect]; *Galvez v. Ford Motor Company* (E.D. Cal. 2018) 2018 WL 4700001, at p. \*5; *Durkee v. Ford Motor Company* (N.D. Cal. 2014) 2014 WL 7336672, at p. \*7 [noting a first or second repair would put a reasonable person on inquiry notice of a breach of warranty].)

In this case, the FAC indicates Plaintiffs learned of the wrongful conduct shortly before filing suit (FAC at ¶ 47) and they could not reasonably have been expected to learn of or discover the fraud sooner. (FAC at ¶ 76c.) While FCA contends the allegations are conclusory, the FAC indicates that FCA acquired its knowledge of the defect through exclusive means, as noted above (see also FAC at ¶ 76b) and it is generally understandable that Plaintiffs, as alleged reasonable consumers, would not necessarily have a way of knowing the defective nature of the vehicle and that FCA committed fraud in concealing the defect. Certainly, if the problems persisted after a few repair attempts than Plaintiffs should have been on notice of the claim, but the FAC does not disclose when those repair attempts occurred sufficient to show that the three year limitations period ran. As a result, the court intends to deny the motion predicated on the expiration of the statute of limitations.

### **TENTATIVE RULING**

(1) The court grants FCA’s unopposed request for judicial notice of the fact that it opted into the procedures outlined in Code of Civil Procedure section 871.20.

(2) The court denies the motion for judgment on the pleadings on statute of limitations grounds as to the Song Beverly Claims.

- a. Code of Civil Procedure section 871.21 does not retroactively apply. (*Galdamez v. FCA US LLC* (C.D. Cal., Mar. 23, 2026, No. 2:25-CV-10618-HDV-MAR) 2026 WL 1047004, at \*1.)
- b. FCA also suggests that a four year limitations period applies to the Song Beverly claims, but the warranties contemplate performance into the future (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309) and FCA misapplies the four years as running from August 27, 2022, which it presupposes is the day the vehicle was delivered. Furthermore, the allegations do not indicate when the vehicle was delivered, only that “on or about” August 27, 2022, the “warranty contract” was entered into. Such allegations can overcome a demurrer. (See *Liptak v. Diane Apartments, Inc.* (1980) 109 Cal.App.3d 762 [involving an uncertain time of close to a year]; *Childs v. State of California* (1983) 144 Cal.App.3d 155, 161 [noting liberal construction of the complaint controls, especially when the defendant presumably has knowledge of the underlying dates].)

(3) The court grants the motion as to the fraud claim with 20-day leave to amend and provides the following findings in the event the FAC is amended.

- a. The economic loss rule does not apply to the claim. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 41.)
- b. FCA’s assertion that the allegations of exclusive knowledge and delayed discovery are conclusory is without merit.
- c. The FAC fails to state facts sufficient to establish a transactional relation between Plaintiffs and FCA giving rise to a duty to disclose.